

THE CONSTITUTION (SIXTY-FIRST AMENDMENT) ACT, 1988

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Constitution and Amendments

THE CONSTITUTION (SIXTY-FIRST AMENDMENT) ACT, 1988

India

THE CONSTITUTION (SIXTY-FIRST AMENDMENT) ACT, 1988

Act 061 of 1988

Published in Gazette of India on 9 December 1988

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Statement of Objects and Reasons appended to the Constitution (Sixty-second Amendment) Bill, 1988 (Bill No. 129 of 1988) which was enacted as THE CONSTITUTION (Sixty-first Amendment) Act, 1988

STATEMENT OF OBJECTS AND REASONS

Article 326 of the Constitution provides that the elections to the House of the People and to the Legislative Assembly of every State shall be on the basis of adult suffrage, that is to say, a person should not be less than 21 years of age. It has been found that many of the countries have specified 18 years as the voting age. In our country some of the State Governments have adopted 18 years of age for elections to the local authorities. The present-day youth are literate and enlightened and the lowering of the voting age would provide to the unrepresented youth of the country an opportunity to give vent to their feelings and help them become a part of the political process. The present-day youth are very much politically conscious. It is, therefore, proposed to reduce the voting age from 21 years to 18 years.

2.

The Bill seeks to achieve the above object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Thirty-ninth Year of the Republic of India as follows:-

1.

Short title.- This Act may be called the Constitution (Sixty-first Amendment) Act, 1988.

2. Amendment of article 326.-In article 326 of the Constitution, for the words "twenty-one years", the words "eighteen years" shall be substituted.

[The Constitution (Sixty-first Amendment) Act, 1988, reduced the voting age for elections for Indian citizens from 21 years to 18 years. The voting age for an Indian citizen was decided as 21 years on the basis of adult suffrage. In simple words, any person below the age of 21 was not allowed to cast a vote in the elections for the Lok Sabha and the Legislative Assembly of each State. With the introduction of this Amendment, a chance was given to unrepresented youths to express their views and emotions out in the open, thus inspiring them to participate in the political process.

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